



PAKISTAN MEDICAL AND DENTAL COUNCIL (AMENDMENT) ORDINANCE, 2014

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Contents

	PREAMBLE.
1	SHORT TITLE AND COMMENCEMENT
2	SUBSTITUTION OF SECTION 36B, ORDINANCE XXXII OF 1962

PAKISTAN MEDICAL AND DENTAL COUNCIL (AMENDMENT) ORDINANCE, 2014

ORDINANCE NO. III OF 2014

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ORDINANCE

further to amend the Pakistan Medical and Dental Council Ordinance, 1962

WHEREAS it is expedient further to amend the Pakistan Medical and Dental Council Ordinance, 1962 (XXXII of 1962) for the purposes hereinafter appearing;

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan the President is pleased to make and promulgate the following Ordinance, namely:—

1. Short title and commencement. :— (1) This Ordinance may be called the Pakistan Medical and Dental Council (Amendment) Ordinance, 2014.

(2) It shall come into force at once.

2. Substitution of section 36B, Ordinance XXXII of 1962.—In the Pakistan Medical and Dental Council Ordinance, 1962 (XXXII of 1962), for section 36B, the following shall be substituted, namely:—

"36B Transitory Provisions.—(1) On the commencement of this Ordinance, the members notified by the Federal Government and acting as the Council and Executive Committee shall stand de-notified and shall cease to act as or be a member of the Council or Executive Committee, as the case may be, forthwith.

(2) The Federal Government shall, by notification in the official Gazette, constitute a Management Committee consisting of seven professionals from the field of medicine, law and finance to exercise all the powers vested in the Council by the Ordinance. The Federal Government shall nominate one of the aforesaid seven persons as the Chairperson of the said Committee:

Provided that any person who has been a member of the Council, or has worked for the Council in any capacity, during the period of last ten years, shall not be appointed as a member of the Management Committee.

(3) The Management Committee shall meet at such times and places as it deems fit.

(4) Five members of the Management Committee shall constitute the quorum for holding its meetings.

(5) In particular and without prejudice to the generality of the powers of the Management Committee, as mentioned in sub-section (2), the management Committee shall have the following powers, namely:—

- (a) hold free and fair elections of the Council within one hundred and twenty days from the commencement of this Ordinance;
- (b) examine, investigate and fix responsibility for mismanagement, maladministration and wrongdoing, if any, in the affairs of the Council in the last regime and report the same to the Federal Government for appropriate action under the law; and
- (c) resolve the issues relating to deficiencies regarding teaching faculties of medical and dental colleges.

(6) Notwithstanding anything contained in the Ordinance, the Management Committee shall have the power to review any decision already taken by the Council or its Executive Committee:

Provided that in case any other matters, including but not limited to policy issues, which are or may become necessary to be dealt with shall be referred to the Federal Government for its consideration.

(7) The Chairperson and members shall be entitled to such honorarium and traveling and other allowances as determined by the Federal Government.

(8) No act or proceedings of the Management Committee shall be in valid merely by the reason of,—

- (a) any vacancy in, or defect in the constitution of, the Management Committee; or;
- (b) any irregularity in the procedure of the Management Committee not affecting the merits of the matter dealt with by it.

(9) A member having any financial or other interest in any matter coming before the Management Committee for decision shall disclose his interest in the matter before he may, if allowed by the Management Committee, participate in such proceedings.

(10) The Federal Government and the Management Committee shall at all times be guided by the needs of the medical profession and keep in view the public interest, while taking any decisions with regard to the Council and its work.

(11) The Management Committee shall stand dissolved as soon as the new Council got elected and notified under the Ordinance by election under sub-section (5).

(12) Notwithstanding anything contained in any law, order or judgment of any Court including the Superior Courts, commitment or any agreement, for the time being in force, the provisions of this Ordinance shall prevail."
